

HOUSE BILL No. 1136

DIGEST OF INTRODUCED BILL

Citations Affected: IC 21-18-9-12.5; IC 21-27.

Synopsis: Tuition caps. Provides that the commission for higher education shall determine a tuition rate and mandatory fee cost of living adjustment for specified postsecondary educational institutions. Requires that, except for cost of living adjustments, the tuition rate and mandatory fees at specified postsecondary educational institutions may not increase from the time the student initially enrolls until the student graduates for an undergraduate student who is an Indiana resident.

Effective: July 1, 2026.

Harris

January 5, 2026, read first time and referred to Committee on Education.



Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

HOUSE BILL No. 1136

A BILL FOR AN ACT to amend the Indiana Code concerning higher education.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 21-18-9-12.5 IS ADDED TO THE INDIANA
2 CODE AS A **NEW** SECTION TO READ AS FOLLOWS
3 [EFFECTIVE JULY 1, 2026]: **Sec. 12.5. For purposes of:**

- 4 **(1) IC 21-27-3-6;**
5 **(2) IC 21-27-4-5;**
6 **(3) IC 21-27-5-5;**
7 **(4) IC 21-27-7-7; and**
8 **(5) IC 21-27-8-8;**

9 **the commission shall determine a tuition rate and mandatory fee**
10 **cost of living adjustment based on the Consumer Price Index as**
11 **prepared by the United States Department of Labor.**

12 SECTION 2. IC 21-27-3-6 IS ADDED TO THE INDIANA CODE
13 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
14 1, 2026]: **Sec. 6. (a) For purposes of this section, an undergraduate**
15 **student includes a student enrolled in:**

- 16 **(1) a bachelor's degree program; or**
17 **(2) any degree program or specialized degree program that is**



1 attainable by a student who has completed undergraduate
 2 work prior to admission into the degree program or
 3 specialized degree program but is not required to obtain an
 4 associate or bachelor's degree in order to enroll in the degree
 5 program or specialized degree program.

6 (b) Except as provided in subsection (d) and subject to
 7 subsection (c), the tuition rate and mandatory fees charged by Ball
 8 State University for an undergraduate student who is an Indiana
 9 resident may not increase from the tuition rate and mandatory fees
 10 charged by Ball State University at the time the student initially
 11 enrolled at Ball State University.

12 (c) To qualify under subsection (b), the undergraduate student
 13 must remain enrolled in Ball State University.

14 (d) Tuition rates and mandatory fees charged by Ball State
 15 University under subsection (b) may be increased as a result of a
 16 cost of living adjustment as determined by the commission under
 17 IC 21-18-9-12.

18 SECTION 3. IC 21-27-4-5 IS ADDED TO THE INDIANA CODE
 19 AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
 20 1, 2026]: Sec. 5. (a) For purposes of this section, an undergraduate
 21 student includes a student enrolled in:

22 (1) a bachelor's degree program; or

23 (2) any degree program or specialized degree program that is
 24 attainable by a student who has completed undergraduate
 25 work prior to admission into the degree program or
 26 specialized degree program but is not required to obtain an
 27 associate or bachelor's degree in order to enroll in the degree
 28 program or specialized degree program.

29 (b) Except as provided in subsection (d) and subject to
 30 subsection (c), the tuition rate and mandatory fees charged by
 31 Indiana University for an undergraduate student who is an Indiana
 32 resident may not increase from the tuition rate and mandatory fees
 33 charged by Indiana University at the time the student initially
 34 enrolled at Indiana University.

35 (c) To qualify under subsection (b), the undergraduate student
 36 must remain enrolled in Indiana University.

37 (d) Tuition rates and mandatory fees charged by Indiana
 38 University under subsection (b) may be increased as a result of a
 39 cost of living adjustment as determined by the commission under
 40 IC 21-18-9-12.

41 SECTION 4. IC 21-27-5-5 IS ADDED TO THE INDIANA CODE
 42 AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY



1, 2026]: Sec. 5. (a) For purposes of this section, an undergraduate student includes a student enrolled in:

- (1) a bachelor's degree program; or
- (2) any degree program or specialized degree program that is attainable by a student who has completed undergraduate work prior to admission into the degree program or specialized degree program but is not required to obtain an associate or bachelor's degree in order to enroll in the degree program or specialized degree program.

(b) Except as provided by subsection (d) and subject to subsection (c), the tuition rate and mandatory fees charged by Indiana State University for an undergraduate student who is an Indiana resident may not increase from the tuition rate and mandatory fees charged by Indiana State University at the time the student initially enrolled at Indiana State University.

(c) To qualify under subsection (b), the undergraduate student must remain enrolled in Indiana State University.

(d) Tuition rates and mandatory fees charged by Indiana State University under subsection (b) may be increased as a result of a cost of living adjustment as determined by the commission under IC 21-18-9-12.

SECTION 5. IC 21-27-7-7 IS ADDED TO THE INDIANA CODE AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 7. (a) For purposes of this section, an undergraduate student includes a student enrolled in:

- (1) a bachelor's degree program; or
- (2) any degree program or specialized degree program that is attainable by a student who has completed undergraduate work prior to admission into the degree program or specialized degree program but is not required to obtain an associate or bachelor's degree in order to enroll in the degree program or specialized degree program.

(b) Except as provided by subsection (d) and subject to subsection (c), the tuition rate and mandatory fees charged by Purdue University for an undergraduate student who is an Indiana resident may not increase from the tuition rate and mandatory fees charged by Purdue University at the time the student initially enrolled at Purdue University.

(c) To qualify under subsection (b), the undergraduate student must remain enrolled in Purdue University.

(d) Tuition rates and mandatory fees charged by Purdue University under subsection (b) may be increased as a result of a



1 cost of living adjustment as determined by the commission under
2 IC 21-18-9-12.

3 SECTION 6. IC 21-27-8-8 IS ADDED TO THE INDIANA CODE
4 AS A NEW SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
5 1, 2026]: Sec. 8. (a) For purposes of this section, an undergraduate
6 student includes a student enrolled in:

7 (1) a bachelor's degree program; or

8 (2) any degree program or specialized degree program that is
9 attainable by a student who has completed undergraduate
10 work prior to admission into the degree program or
11 specialized degree program but is not required to obtain an
12 associate or bachelor's degree in order to enroll in the degree
13 program or specialized degree program.

14 (b) Except as provided by subsection (d) and subject to
15 subsection (c), the tuition rate and mandatory fees charged by the
16 University of Southern Indiana for an undergraduate student who
17 is an Indiana resident may not increase from the tuition rate and
18 mandatory fees charged by the University of Southern Indiana at
19 the time the student initially enrolled at the University of Southern
20 Indiana.

21 (c) To qualify under subsection (b), the undergraduate student
22 must remain enrolled in the University of Southern Indiana.

23 (d) Tuition rates and mandatory fees charged by the University
24 of Southern Indiana under subsection (b) may be increased as a
25 result of a cost of living adjustment as determined by the
26 commission under IC 21-18-9-12.

